

26STCV20203 26STCV20203

County: los-angeles

Division: Civil Law and Motion

Department: 508

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Case Number: 26STCV20203 Hearing Date: September 1, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ENTERTAINMENT COUNCIL, LLC d/b/a CRUNCH

DIGITAL,

Plaintiff,

vs.

CANVA PTY LTD.,

Defendant.

Case No.:

26STCV20203

Hearing Date:

September 1, 2026

Hearing Time:

8:30 a.m.

[TENTATIVE] ORDER RE:

DEFENDANT

AND CROSS-COMPLAINANT CANVA PTY LTD.'S MOTION TO SEAL

AND RELATED CROSS-ACTION

Background

On June 25, 2026,

Plaintiff Entertainment Council, LLC d/b/a Crunch Digital ("Crunch") filed this action against Defendant Canva Pty Ltd.

("Canva"), alleging four causes of action for (1)

breach of contract, (2) breach of implied covenant of good faith and fair

dealing, (3) quantum meruit, and (4) declaratory relief.

On May 21, 2026, Canva filed a

cross-complaint against Crunch, alleging four causes of action for (1) violation

of California Uniform Trade Secrets Act, (2) breach of contract, (3) breach of implied

covenant of good faith and fair dealing, and (4) declaratory

relief.

Defendant and Cross-Complainant Canva now

moves to seal portions of its answer and cross-complaint. Crunch did not file

an opposition.

Legal Standard

Generally, "[u]nless

confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule

2.550(c).) If the presumption of access applies, "[t]he

court may order that a record be filed under seal only if it expressly finds

facts that establish: (1) There exists an

overriding interest that overcomes the right of public access to the record; (2)

The overriding interest supports sealing the record; (3) A substantial

probability exists that the overriding interest will be prejudiced if the

record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No

less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d).)

Discussion

As an initial matter, it does not appear that Canva lodged unredacted copies of the Cross-Complaint and Answer with the Court. The Court notes that pursuant to California Rules of Court, rule 2.551(b)(4), “[t]he party requesting that a record be filed under seal must lodge it with the court under (d) when the motion or application is made, unless good cause exists for not lodging it or the record has previously been lodged under (3)(A)(i). Pending the determination of the motion or application, the lodged record will be conditionally under seal.”

It does not appear that the subject records were lodged with the Court when the instant motion was made, or that the records were previously lodged. Nor do Canva’s moving papers discuss good cause for not lodging the requisite documents. Accordingly, Canva did not comply with the requirements under California Rules of Court, rule 2.551(b)(4), and the Court cannot determine whether the subject records should be filed under seal.

Conclusion

Based on the foregoing, Canva’s motion to seal is denied without prejudice.

Canva is ordered to provide notice of this Order.

DATED: September 1, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court